

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X Index No: 600371/2021
DIANE C. DESOUSA and THOMAS E. DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II and PATRICK J.
KARCHER,

Defendants,

AFFIRMATION IN
SUPPORT OF DEFENDANT
PATRICK J. KARCHER'S
MOTION FOR SUMMARY
JUDGMENT

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MAXWELL RUBIN, hereby affirms, pursuant to CPLR 2106, as follows:

1. I am counsel to the law firm of Warshaw Burstein, LLP, attorneys for the Defendant Patrick J. Karcher ("Karcher"). I am fully familiar with the facts and circumstances set forth herein based upon my representation of Karcher in this matter.

2. I respectfully submit this Affirmation in Support of Karcher's motion for an Order pursuant to CPLR § 3212(b), granting him summary judgment dismissing Plaintiffs Diane C. DeSousa's and Thomas E. DeSousa's (collectively, "Plaintiffs") Summons and Verified Complaint, dated January 8, 2021 (together, the "Verified Complaint") in its entirety as alleged against Karcher.¹

3. Summary judgment is appropriate because Plaintiffs do not have any claims against Karcher. The Verified Complaint alleges four (4) causes of action, all against co-defendant Richard A. Calvagno II ("Calvagno"). This matter's undisputed facts demonstrate that Karcher has nothing to do with Plaintiffs' frivolous lawsuit against Calvagno.

¹ A true and complete copy of the Verified Complaint is annexed hereto as Exhibit A. NYSCEF No. [2](#).

4. In the Verified Complaint, Plaintiffs allege: (i) Calvagno's Dodge SRT Hellcat is too loud, creates too much vibration, and Calvagno drives too fast in the neighborhood (Ex. A, at ¶¶8-22); (ii) during the 2020 boating season, Calvagno allegedly rented boat slips to other people, which created excessive noise, congestion and street traffic (Id., at ¶¶23-27); (iii) on possibly two occasions, October 24, 2020 and November Calvagno held social events in his backyard, which were noisy and left garbage (Id., at ¶¶28-37); and (iv) Calvagno let trash pile up before it was taken by the sanitation department. Id., at ¶¶38-41).

5. It is unclear whether Plaintiffs can maintain any of their causes of action against Calvagno. Not every residential neighborhood dispute is actionable. Common annoyances such as your neighbor hosting a social event or parking more than one boat at a time at their bulkhead do not qualify as nuisance.

6. Regardless, discovery has confirmed that Plaintiffs do not have any claims against Karcher. Karcher is only a party to this action because he co-signed Calvagno's mortgage when he purchased the residence located at 320 Grand Central Avenue, Amityville, New York 11701 (the "Calvagno Residence"), which is across the street from Plaintiffs' residence located at 329 Grand Central Avenue, Amityville, New York 11701 (the "Plaintiffs' Residence").

7. Karcher has never met the Plaintiffs. Plaintiffs do not accuse Karcher of doing anything that has interfered with their lives or caused damages/nuisance. Karcher has no control over Calvagno's use of his property, cars, bulkhead, etc. The Verified Complaint should be dismissed as against Karcher.

PROCEDURAL HISTORY

8. Plaintiffs commenced this action on or about January 8, 2021 when they filed their Verified Complaint. See Ex. A, NYSCEF Nos. [1](#) and [2](#).

9. On or about January 27, 2021, Calvagno electronically filed his Verified Answer with Counterclaims to Plaintiff's Verified Complaint. A true and complete copy of Calvagno's Verified Answer is annexed hereto as Exhibit B. NYSCEF No. [4](#).

10. On February 15, 2021, Plaintiffs electronically filed their Reply to Calvagno's Counterclaims. See Exhibit C hereto. NYSCEF No. [5](#).

11. On or about March 5, 2021, Karcher electronically filed his Verified Answer to Plaintiffs' Verified Complaint. A true and complete copy of Karcher's Verified Answer is annexed hereto as Exhibit D. NYSCEF No. [7](#).

RELEVANT FACTS

12. Including the facts set forth above, this motion's material facts are taken directly from the Parties' sworn deposition testimony and pleadings. The Court is also respectfully directed to the accompanying Affirmation of Patrick J. Karcher, dated May 28, 2024 (the "Karcher Affirm.") for further supporting factual testimony.

A. Plaintiffs and Calvagno Reside Across the Street From Each Other

13. Plaintiffs have resided at the Plaintiffs' Residence for approximately 22 years.²

14. Plaintiffs' Residence is directly across the street from the Calvagno Residence:

² See Deposition Transcript of Diane DeSousa ("Ms. DeSousa") taken on August 10, 2023, annexed hereto as Exhibit E, at p. 7, Lines 3-18. NYSCEF No. [41](#).

Q: Mr. Desousa, who is sitting here today obviously, and his wife Diane Desousa live directly across the street from you on Grand Central Avenue in Amityville?

A: Correct.

See Calvagno's May 11, 2023 deposition transcript, annexed hereto as Exhibit F, at Page 24, Lines 9-13. NYSCEF No. [43](#).

B. Karcher Has Never Resided at the Calvagno Residence

15. Karcher co-signed Calvagno's mortgage when Calvagno purchased his residence. See Karcher Aff., at ¶3.

16. Karcher has never resided at the Calvagno residence. See Karcher Aff., at ¶4.

17. Mr. Calvagno's testimony confirmed that Karcher has never resided at the Calvagno Residence:

Q: Who is the other person that owns this home at 320 Grand Central Avenue in Amityville?

A: Patrick Karcher.

Q: Who is Patrick Karcher?

A: A friend.

Q: Just to clarify, I know you said the only two people that live there are you and Anthony Crimi. Patrick Karcher does not live at 320 Grand Central Avenue; is that correct?

A: He doesn't.

Q: Has Patrick Karcher ever lived at 20 Grand Central Avenue in Amityville?

A: No, he has not.

See Ex. E, at Page 23, Line 18 – Page 24, Line 8.

18. Karcher has no control over Calvagno's use of the Calvagno Residence. See Karcher Aff., at ¶5.

19. Karcher has no control over Calvagno's use of his automobiles. Id., at ¶6.

20. Plaintiffs chose not to depose Karcher in this matter. Id., at ¶7.

21. Karcher has never met the Plaintiffs. Id., at ¶9.

C. Plaintiffs' Causes of Action are Only Alleged Against Calvagno

22. Mr. DeSousa testified that Plaintiffs' causes of action are alleged only against Calvagno, and not Karcher:

Q: Paragraph 20 [of the Verified Complaint], if you could read that.

A: "Defendant's actions create excessive noise and vibration which are upsetting to both Plaintiffs, causing stomach upset, nausea, manifesting itself in other physical ways as well."

Q: Let me be clear on what you were referring to there. When you said "Defendant's actions created," which actions were you referring to just so I understand?

A: All of his [Calvagno] actions.

See Thomas DeSousa's May 3, 2023 deposition transcript, annexed hereto as Exhibit G, at P. 37, Lines 5-17. NYSCEF No. [40](#).

23. Mr. DeSousa's deposition demonstrates that this case is nothing more than paranoid and petty Plaintiffs who simply do not like the person living across the street:

Q: Do you remember, sire, when I –

A: Yes, I do.

Q: -- if you ever said to the father that I bought that car to break your son's fucking balls and you said no, correct?

A: Yes, I remember.

Q: So you remember saying that?

A: Yes, I did.

Ex. G, at p. 67, Lines 2-9.

ARGUMENT

POINT I

STANDARD FOR SUMMARY JUDGMENT

24. The proponent of a summary judgment motion must make a *prima facie* showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact. *Alvarez v. Prospect Hosp.*, 68

[N.Y.2d 320, 324 \(1986\)](#). “Once this showing has been made, however, the burden shifts to the party opposing the motion for summary judgment to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact which require a trial of the action.” [Alvarez, 68 N.Y.2d at 324](#). [Shohet v. Shaqya, 43 A.D.3d 816, 816 \(2d Dep’t 2007\)](#).

25. The Verified Complaint alleges four (4) causes of action: (i) private nuisance; (ii) public nuisance; (iii) nuisance *per se*; and (iv) intentional infliction of emotional distress. Summary judgment is appropriate dismissing the Verified Complaint because there are no triable issues of material fact against Karcher. Karcher has never resided at the Calvagno Residence. Plaintiffs have not asserted any causes of action against Karcher.

26. In turn, Plaintiffs cannot meet their burden to create a triable issue of material fact. The Parties’ deposition testimony confirms that this is a neighborhood dispute between Plaintiffs and Calvagno. Karcher is not involved.

27. Therefore, there are no issues of material fact which require a trial of this action against Karcher, and the instant motion for summary judgment should be granted.

POINT I

PLAINTIFFS DO NOT HAVE A CAUSE OF ACTION FOR PRIVATE NUISANCE AGAINST KARCHER

28. Plaintiffs cannot sustain their first cause of action for private nuisance against Karcher. “The elements of a private nuisance a cause of action are: (1) an interference substantial in nature, (2) intentional in origin, (3) unreasonable in character, (4) with a person’s property right to use and enjoy land, (5) caused by another’s conduct in acting or failure to act.” [Harris v. Miranda, 219 A.D.3d 1498, 1499 \(2d Dep’t 2023\)](#)

(quotation omitted); [Banschick v. Johnson](#), 222 A.D.3d 608, 609 (2d Dep’t 2023)

(quotations omitted). “Not every annoyance will constitute a nuisance. Nuisance imports a continuous invasion of rights – a pattern of continuity or recurrence of objectionable conduct.” [Harris](#), 219 A.D.3d at 1499. “The plaintiffs’ allegations of interference with their right to use and enjoy their property are theoretical, conclusory, and insufficient to state a cause of action alleging common-law nuisance.” [Schlossberg v. DeFalco](#), 163 A.D.3d 886, 888 (2d Dep’t 2018).

29. In this case, Karcher has not interfered with the Plaintiffs. Karcher has never resided at the Calvagno Residence. Plaintiffs do not accuse Karcher of doing anything, let alone actions that would satisfy all of the elements of a private nuisance cause of action.

30. Therefore, since Plaintiffs cannot demonstrate a triable issue of material fact against Karcher with respect to their first cause of action, summary judgment is appropriate, and the instant motion should be granted in its entirety.

POINT II

PLAINTIFFS DO NOT HAVE A CAUSE OF ACTION FOR PUBLIC NUISANCE AGAINST KARCHER

31. Just like their first cause of action, Plaintiffs cannot sustain their second cause of action for public nuisance against Karcher.

32. “To sustain a cause of action sounding in public nuisance, the plaintiff must establish by clear and convincing evidence a substantial and unreasonable interference with the public right.” [DeStefano v. Emergency Housing Group, Inc.](#), 281 A.D.2d 449, 451 (2d Dep’t 2001) (internal citations omitted).

33. Plaintiffs do not accuse Karcher of interfering with anything. Thus, there is no triable issue of material fact concerning Plaintiffs' second cause of action and summary judgment should be granted.

POINT III

PLAINTIFFS DO NOT HAVE A CAUSE OF ACTION FOR NUISANCE PER SE AGAINST KARCHER

34. For the same reasons, Plaintiffs' third cause of action for nuisance *per se* fails as alleged against Karcher.

35. "Nuisance *per se* is a nuisance based on an act which is unlawful, even if performed with due care. In an action based on a theory of a nuisance per se, the plaintiffs need only establish a violation of law, and need not show that the nuisance was intentional or negligence. They must still, however, establish the remaining elements of the cause of action, which include proof of a situation created by the defendants which endangers or injures the property, health, safety, or comfort of a considerable number of persons." [*State v. Fermenta ASC Corp.*, 238 A.D.2d 400, 403 \(2d Dep't 1997\)](#).

36. In this case, discovery has demonstrated that Plaintiffs cannot establish a cause of action for nuisance *per se* against Karcher. Plaintiffs do not accuse Karcher of doing anything, let alone acting in any manner that violated the law. Karcher co-signed Calvagno's mortgage. That is not illegal. Therefore, Karcher's motion for summary judgment should be granted.

POINT IV

**PLAINTIFFS DO NOT HAVE A CLAIM FOR INTENTIONAL
INFLICTION OF EMOTIONAL DISTRESS AGAINST KARCHER**

37. Plaintiffs' fourth cause action alleging the intentional infliction of emotional distress fails as a matter of law as alleged against Karcher because Plaintiffs have never interacted with Karcher and do not assert any claims against him.

38. “The elements of intentional infliction of emotional distress are (1) extreme and outrageous conduct; (2) the intent to cause, or the disregard of a substantial likelihood of causing, severe emotional distress; (3) causation; and (4) severe emotional distress.” [Bannschick, 222 A.D.3d at 610](#), quoting [Klein v. Metropolitan Child Services, Inc., 100 A.D.3d 708, 710 \(2d Dep’t 2012\)](#). “In order to state a cause of action to recover damages for intentional infliction of emotional distress, the pleading must allege ‘conduct [that] has been so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.’” [Banschick, 222 A.D.3d at 611](#) quoting [Ratto v. Oliva, 195 A.D.3d 870, 870 \(2d Dep’t 2021\)](#). “While a deliberate and malicious campaign of harassment or intimidation may, under certain circumstances, be sufficient to meet that rigorous standard, the conduct must consist of more than mere insults, threats, annoyances, or indignities.” [Ratto, 195 A.D.3d at 870](#). “Mere threats, annoyance or other petty oppressions, no matter how upsetting, are insufficient to constitute the tort of intentional infliction of emotional distress.” [Owen v. Leventritt, 174 A.D.2d 471, 472 \(1st Dep’t 1991\)](#).

39. The Verified Complaint does not allege that Karcher has engaged in any conduct towards the Plaintiffs that is so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency. Therefore, summary judgment is

appropriate and Plaintiffs' Verified Complaint should be dismissed in its entirety as against Patrick Karcher.

POINT V

PLAINTIFFS CANNOT OBTAIN ANY INJUNCTIVE RELIEF AGAINST KARCHER

40. It is anticipated that in opposition Plaintiffs will argue that Karcher is not entitled to summary judgment because in the Verified Complaint's Wherefore clause, Plaintiffs seek an injunction ordering Defendants to "abate the nuisance caused by Defendants' actions stated herein" and "an injunction prohibiting Defendants from leasing or operating a public marina and/or a catering facility and/or storing garbage and debris at the [Calvagno Residence]." See Ex. A, at pp. 11-12. Any such argument would be incorrect and does not defeat Karcher's entitlement to summary judgment.

41. Karcher has no control over Calvagno's automobile. Karcher has no control over whether Calvagno puts his garbage on the curb. Neither Plaintiffs nor Karcher can stop Calvagno from using the Calvagno Residence for lawful means. Plaintiffs cannot stop Calvagno from having a social event on one or two occasions.

42. "The plaintiff has presented no reason for departure from the general legal principle that an adjoining owner may put its real property to any lawful use, even to the damage of a neighbor." *Chatsworth Realty 344 LLC v. Hudson Waterfront Co. A, LLC.*, 2003 WE 108588 * 5 (Sup. Ct. N.Y. Co., March 4, 2003). It is not clear what relief, if any, Plaintiffs can obtain against Calvagno.

43. Therefore, because Karcher does not reside at the Calvagno Residence, and he has no control over Calvagno's use of his property and automobiles, Plaintiffs cannot

obtain the requested injunctive relief against Karcher, and summary judgment dismissing the Verified Complaint in its entirety is appropriate.

44. Pursuant to CPLR 2106, I affirm this 21st day of May 2024, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true and I understand that this document may be filed in an action or proceeding in a court of law.

WHEREFORE, for the following reasons, as well as the reasons set forth in Karcher's accompanying Affidavit, it is respectfully requested that the instant motion for summary judgment be granted in its entirety.

Dated: New York, New York
May 24, 2024

Maxwell Rubin
MAXWELL RUBIN

Certification Pursuant to Uniform Rules 202.8-b(c)

I affirm that the word count of the Affirmation in Support, excluding the caption, and signature block is 2,693. This document complies with the word count limit set forth in Uniform Rule 202.8-b(a).

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